

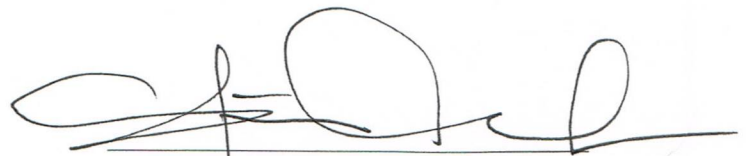
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ANDRE SOUCHET,

Plaintiff,

-against-

CITY OF NEW YORK; DETECTIVE JUAN J.
RODRIGUEZ, Shield # 14964, Individually and in his
official capacity; POLICE OFFICERS JOHN DOE #1
through #5, Individually and in their official capacities,Defendants.
-----XFiled:
INDEX NO.Plaintiff designates
Bronx County
as the place of trial**SUMMONS**The basis of venue is
the location of occurrence.Plaintiff resides at
1805 Buckner Blvd.
Apt. 4E
Bronx, NY 10472**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by you personally within the State, or within thirty (30) days after completion of service is made in any other manner, and in the case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint.

Dated: New York, New York
September 5, 2019Sofia Aranda, Esq.
ARANDA LAW FIRM, PLLC
11 Broadway, Suite 615
New York, NY 10004
(646) 217-4777**Defendants' Addresses:**Corporation Counsel of CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index#

-----X
ANDRE SOUCHET,

Plaintiff,

**VERIFIED
COMPLAINT**

-v-

CITY OF NEW YORK; DETECTIVE JUAN J.
RODRIGUEZ, Shield # 14964, Individually and in his
official capacity; POLICE OFFICERS JOHN DOE #1
through #5, Individually and in their official capacities,

Defendants.
-----X

Plaintiff, ANDRE SOUCHET, by his attorney, Aranda Law Firm, PLLC, as and for his
Verified Complaint, respectfully alleges, upon information and belief:

INTRODUCTION

1. This is an action to redress the deprivation by the Defendants of the rights secured to the Plaintiff by the Constitution and laws of the United States and the State of New York.
2. Venue is placed in Bronx County because it is the county where the Plaintiff resides and the location of the occurrence.

THE PARTIES

3. At all times mentioned, the Plaintiff, ANDREW SOUCHET, was and still is a resident of the County of Bronx and State of New York.
4. Defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Defendant, CITY OF NEW YORK, has established and maintains a police

department which is an agency of the Defendant CITY OF NEW YORK.

6. At all times relevant, Defendant JUAN J. RODRIGUEZ, Shield No. 14964, and Police Officers JOHN DOE #1 through #5, were and are residents of the State of New York.

7. At all times relevant, Defendant CITY OF NEW YORK, employed the police officers who were involved in the matters hereinafter alleged.

8. At all times hereinafter mentioned, the police officers involved in the matters hereinafter alleged were acting within the scope of their employment as police officers with the Police Department of the CITY OF NEW YORK (hereinafter "NYPD").

9. At all times hereinafter mentioned, the police officers were acting under color of law and authority as police officers with the NYPD and under the laws of the City and State of New York.

10. At all times mentioned in the Complaint, the individual Defendants acted jointly and in concert with one another.

11. Each Defendant had the duty and the opportunity to protect Mr. Souchet from the unlawful actions of the other Defendants, but each Defendant failed and refused to perform such duty, thereby proximately causing the Plaintiff's injuries.

NOTICE OF CLAIM PROVISIONS

12. On August 29, 2018, Mr. Souchet, duly served a Notice of Claim upon the City of the New York within 90 days of the incident complained of herein and in the manner and mode required by law.

13. On October 29, 2018, Plaintiff appeared for a hearing pursuant to General Municipal Law 50(h).

14. That thirty days have elapsed since the service of said Notices of Claim and Plaintiff's claims have not been adjusted or paid.

15. That this action is brought within one year and ninety days from the date of occurrence complained herein.

16. Mr. Souchet has complied with all conditions precedent applicable to the instant action.

STATEMENT OF FACTS

17. On November 17, 2015, Mr. Souchet was contacted by the NYPD and sought for questioning in relation to fight.

18. NYPD Police Officers informed Mr. Souchet's family they had an arrest warrant for Andre Souchet's arrest.

19. Mr. Souchet arranged for his voluntary surrender and met with NYPD officers at a nearby gas station.

20. Police officers searched and handcuffed Mr. Souchet and took him to Precinct 43 for questioning.

21. Mr. Souchet was left in an interrogation room for approximately five (5) hours in before being questioned.

22. Rather than conducting a lawful investigation, Defendant RODRIGUEZ and DOES(S) #1 through #5 immediately targeted Andrew Souchet.

23. Defendant RODRIGUEZ and JOHN DOE #1 through #5 coerced the complaining witness to falsely identify Mr. Souchet as the perpetrator by conducting an impermissibly suggestive photo array and police lineup.

24. Mr. Souchet was identified as a suspect and subsequently charged with fifteen (15) criminal charges in Bronx County, Criminal Court.

25. Mr. Souchet was arraigned and falsely accused of: one (1) count of attempted murder; six (6) counts of robbery; four (4) counts of assault; two (2) counts of gang assault; one (1) count of criminal possession of a weapon; and one (1) count of harassment.

26. Bail was set at \$50,000 bond/\$10,000 cash, an amount which Mr. Souchet and his family could not pay until approximately a month later.

27. Defendant RODRIGUEZ, Shield #14964, is the deponent on the Bronx County Criminal Court Complaint that was lodged against Mr. Souchet under docket number 2015BX054504.

28. On November 30, 2015, Mr. Souchet was indicted by a grand jury on nine (9) counts: one (1) count of robbery in the first degree; two (2) counts of robbery in the second degree; one (1) count of robbery in the third degree; one (1) count of attempted assault in the first degree; one (1) count of attempted gang assault in the first degree; assault in the first second degree; assault in the third degree; criminal possession of a weapon in the fourth degree. All these charges are felonies, except for the last two charges.

29. These allegations, as they related to Mr. Souchet, are lies.

30. Mr. Souchet did not participate in the alleged robbery and was not near the area where the robbery took place.

31. Mr. Souchet attended approximately twenty-eight (28) court appearances during the three (3) year span that Mr. Souchet's criminal case was prosecuted.

32. On June 6, 2018, when the court was scheduled to select a trial date for Mr. Souchet's trial, all of the charges against Mr. Souchet were dismissed.

33. Mr. Souchet was wrongfully deprived of his liberty and endured a three-year criminal prosecution due to the false felony robbery and assault charges that were lodged against him by Defendants.

FIRST CAUSE OF ACTION

False Arrest/Unlawful Imprisonment

(Against CITY OF NEW YORK and Individual Defendants)

34. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

35. Mr. Souchet was subjected to an unlawful search and seizure and false arrest by officers who were employees, agents and/or servants of Defendant CITY OF NEW YORK.

36. That said unlawful search, arrest and imprisonment was without justification, not privileged under law and beyond the boundaries of reasonableness.

37. That Defendant, CITY OF NEW YORK, through its police officers, agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid search, false arrest and unlawful imprisonment of Mr. Souchet.

38. That at the time of the search of unlawful arrest and imprisonment, Mr. Souchet had not committed any illegal act.

39. That at the time of the search of his unlawful arrest and imprisonment, Mr. Souchet had not committed or attempted to commit any crime.

40. That there was no reasonable cause to subject Mr. Souchet to an arrest and imprisonment.

41. On the aforesaid date and place, the Defendant, CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined Mr. Souchet, who was falsely arrested by the Defendant CITY OF NEW YORK.

42. Mr. Souchet was conscious of said confinement and/or restriction.

43. Mr. Souchet did not consent to said confinement and/or restriction.

44. The confinement and/or constriction was not otherwise privileged.

45. By the actions described above, the Defendant CITY OF NEW YORK caused Mr. Souchet to be falsely arrested, without probable cause and without an arrest warrant.

46. That said false arrest and false imprisonment caused Mr. Souchet to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation.

47. As a result of the foregoing, Mr. Souchet, demands judgment against the Defendant CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

Malicious Prosecution
(Against All Defendants)

48. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

49. Defendant, CITY OF NEW YORK, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against Mr. Souchet, without probable cause and in bad faith.

50. Defendant RODRIGUEZ, intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against Mr. Souchet by filing an accusatory instrument and/or testifying before the grand jury, without probable cause and in bad faith.

51. Defendant RODRIGUEZ and DOES(S) #1 through #5, fabricated evidence and misrepresented to prosecutors and the grand jury facts that further vitiated probable cause against Mr. Souchet, including but not limited to the facts that the purported independent identification of Andre Souchet was the product of unduly suggestive identification procedures.

52. Defendants, JOHN DOE, #1 through #5, intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against Mr. Souchet by filing an accusatory instrument and/or testifying before the grand jury, without probable cause and in bad faith.

53. That Mr. Souchet was willfully and wrongfully accused of having committed a crime in violation of the penal laws of the State of New York.

54. That Mr. Souchet was forced to attend approximately twenty-eight (28) court appearances related to the felony and misdemeanor charges pending against him and was incarcerated for approximately thirty (30) days.

55. That Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, gave false testimony in connection with Mr. Souchet's criminal prosecution.

56. That Defendant RODRIGUEZ gave false testimony in connection with Mr. Souchet's criminal prosecution.

57. That Defendants, JOHN DOE #1 through #5, gave false testimony in connection with Mr. Souchet's criminal prosecution.

58. That Mr. Souchet was charged with thirteen (13) felonies and two (2) misdemeanors in criminal court and later indicted on (9) counts.

59. That Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, failed to disclose evidence that showed that Mr. Souchet was not the person who committed the offense as alleged in the accusatory instrument.

60. That Defendant RODRIGUEZ failed to disclose evidence that showed that Mr. Souchet was not the person who committed the offense which Mr. Souchet was accused.

61. That Defendants, JOHN DOE #1 through #5, failed to disclose evidence that showed that Mr. Souchet was not the person who committed the offense which Mr. Souchet was accused.

62. That Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, intentionally withheld evidence that showed that Mr. Souchet was not the person who committed the offense which Mr. Souchet was accused.

63. That Defendant RODRIGUEZ, intentionally withheld evidence that showed that Mr. Souchet was not the person who committed the offense which Mr. Souchet was accused.

64. That Defendants, JOHN DOE #1 through #5, intentionally withheld evidence that showed that Mr. Souchet was not the person who committed the offense which Mr. Souchet was accused.

65. In commencing and continuing said malicious prosecution, Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, caused Mr. Souchet, to be falsely charged with crimes in violation of the penal laws of the State of New York.

66. In commencing and continuing said malicious prosecution, Defendant RODRIGUEZ, caused Mr. Souchet, to be falsely charged with crimes in violation of the penal laws of the State of New York.

67. In commencing and continuing said malicious prosecution, Defendants, JOHN DOE #1 through #5, caused Mr. Souchet to be falsely charged with crimes in violation of the penal laws of the State of New York.

68. That Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, knew or should have known, through the exercise of proper police procedure and reasonable care that the investigation leading to Mr. Souchet's arrest was false, flawed and incomplete.

69. That Defendant RODRIGUEZ, knew or should have known, through the exercise of proper police procedure and reasonable care that the investigation leading to Mr. Souchet's arrest was false, flawed and incomplete.

70. That Defendants, JOHN DOE #1 through #5, knew or should have known, through the exercise of proper police procedure and reasonable care that the investigation leading to Mr. Souchet's arrest was false, flawed and incomplete.

71. That Defendant, CITY OF NEW YORK, maliciously, knowingly, and intentionally caused and was otherwise indifferent to a materially false and misleading accusatory instrument being issued against Mr. Souchet.

72. That Defendant RODRIGUEZ, maliciously, knowingly, and intentionally caused and was otherwise indifferent to a materially false and misleading accusatory instrument being issued against Mr. Souchet.

73. That Defendants, JOHN DOE #1 through #5, maliciously, knowingly, and intentionally caused and was otherwise indifferent to a materially false and misleading accusatory instrument being issued against Mr. Souchet.

74. That Defendant, CITY OF NEW YORK, failed to make further inquiry when a reasonable person would have done so.

75. That Defendant RODRIGUEZ failed to make further inquiry when a reasonable person would have done so.

76. That Defendants JOHN DOE #1 through #5, failed to make further inquiry when a reasonable person would have done so.

77. That on June 6, 2018, all criminal charges against Mr. Souchet were dismissed.

78. As a result of the aforementioned malicious prosecution, Mr. Souchet, suffered severe emotional and psychological distress, anguish, anxiety, fear and humiliation, loss of freedom, legal expenses and damage to his reputation and standing within his community.

79. As a result of the foregoing, Mr. Souchet, demands judgment against defendants in a sum of money which exceeds the jurisdiction limits of all the courts lesser jurisdiction.

THIRD CAUSE OF ACTION

Negligent Infliction of Emotional Distress

(Against CITY OF NEW YORK and Individual Defendants)

80. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

81. Defendant, CITY OF NEW YORK, by its agents, servants and/or employees falsely arrested and imprisoned Mr. Souchet.

82. Defendants by its acts as herein above stated were in breach of the duty of care

that was owed to the community and more particularly to Mr. Souchet.

83. Defendants had a duty to the community and to Mr. Souchet, to perform its law enforcement duties by adequately monitoring and training its officers, so as to not cause harm to innocent members of the community and more particularly to Mr. Souchet.

84. Defendants knew or should have known, that the failure to exercise due care in the performance of its investigation into complaints or allegations, from persons whose reliability was not known to have provided accurate information, and/or whose information was insufficiently detailed and precise, would cause Mr. Souchet, severe emotional distress.

85. Due to Defendants' failure to exercise due care, Mr. Souchet, endured fear, intimidation, extreme anxiety, and emotional abuse when police officers unlawfully detained, arrested, imprisoned and prosecuted Mr. Souchet.

86. Defendants' false accusation and arrest was used to intimidate, harass and emotionally abuse Mr. Souchet in order to be criminally prosecuted on false charges.

87. As a proximate result of the foregoing, Mr. Souchet was injured.

88. As a proximate result of the foregoing, Mr. Souchet was seriously injured.

89. The conduct of the defendant(s) was outrageous.

90. Defendants' conduct, described herein above, was carried out with knowing and deliberate disregard to the substantial probability of causing Mr. Souchet severe emotional distress.

91. Defendants' conduct described herein was extreme in degree and outrageous in character.

92. Mr. Souchet suffered severe emotional distress.

93. Defendants' conduct, described herein, was the cause of the severe emotional

distress suffered by Mr. Souchet

94. Due to Defendants' negligent infliction of emotional distress Mr. Souchet is entitled to damages in an amount that exceeds the jurisdiction of all lower courts.

FOURTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress
(Against Individual Defendants)

95. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

96. Defendants RODRIGUEZ and JOHN DOE #1 through #5, conduct described herein above, was carried out with the intent to cause Mr. Souchet severe emotional distress.

97. Defendants conduct described herein above, was carried out with disregard of the substantial probability of causing Mr. Souchet, severe emotional distress.

98. Defendants conducted an impermissibly suggestive technique to obtain a false witness identification, falsely imprisoned, and initiated a malicious prosecution against Mr. Souchet, with conscious disregard for the suffering of Mr. Souchet.

99. As a result of the extreme intimidation, false accusation and false imprisonment, Mr. Souchet endured incarceration for approximately (30) days, and three years of criminal prosecution of those false charges.

100. Defendants conduct, described herein above, was extreme in degree and outrageous in character.

101. Mr. Souchet suffered severe emotional distress.

102. Defendants' conduct, described herein above, was the cause of the severe emotional distress suffered by Mr. Souchet.

103. Due to Defendants' intentional infliction of emotional distress the Mr. Souchet is entitled to damages in an amount that exceeds the jurisdiction of all lower courts.

FIFTH CAUSE OF ACTION

Negligent Hiring, Training, Supervision, Retention
(Against CITY OF NEW YORK)

104. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

105. Claim is also made for negligent hiring, retention and training of agents, servants and/or employees of Defendant, CITY OF NEW YORK, including but not limited to Defendants RODRIGUEZ and JOHN DOE #1 through #5, to be employees of the Defendants, CITY OF NEW YORK, who were unstable and a danger to the public at large.

106. Claim is also made for negligent supervision of an agent, servant, employee and/or police officer of Defendant, CITY OF NEW YORK, specifically Defendants RODRIGUEZ and JOHN DOE #1 through #5, in the administration of their position.

107. Claim is also made against Defendant, CITY OF NEW YORK, their agents, servants and/or employees in negligently, carelessly and recklessly causing, allowing and/or permitting Defendants RODRIGUEZ and JOHN DOE #1 through #5 to unlawfully arrest Mr. Souchet, conduct a suggestive lineup and lodge a false criminal complaint against Mr. Souchet.

108. That Defendants, CITY OF NEW YORK, their agents, servants and/or employees knew, or should have known, of Defendants RODRIGUEZ and JOHN DOE #1 through #5's maliciousness and propensity for abuse of police power.

109. That Defendants, CITY OF NEW YORK, negligently retained and/or supervised

Defendants RODRIGUEZ and JOHN DOE #1 through #5 and failed to discharge them.

110. Claim is made that Defendants RODRIGUEZ and JOHN DOE #1 through #5, acting in their capacity as Police Officers, wrongfully, deliberately and unlawfully arrested Mr. Souchet and filed false charged against Mr. Souchet.

111. Claim is made against the Defendants, CITY OF NEW YORK, their agents, servants and/or employees in continuing to employ as police officer, Defendants RODRIGUEZ and JOHN DOE #1 through #5, with their known instability and propensity for irrational actions; in continuing to employ Defendants RODRIGUEZ and JOHN DOE #1 through #5, to remain in their positions as police officers, with foreseeable consequences of injuring members of the public, and in particular Mr. Souchet herein when called upon to perform their duties as peace officers in the State of New York; in failing to properly examine, supervise and review the conduct of Defendants, JOHN DOE #1 through #5 during their employment as New York City Police Officers.

112. Due to Defendants' negligence in hiring, supervision, training, and/or retention, the Mr. Souchet is entitled to damages in an amount that exceeds the jurisdiction of all lower courts.

SIXTH CAUSE OF ACTION

42 U.S.C. §1983 – Fourteenth Amendment and
Article 1, Section 5 of the New York State Constitution
Procedural Due Process
(Against All Defendants)

113. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

114. Defendants RODRIGUEZ and JOHN DOE # 1–5, acting individually and in

concert, deprived Mr. Souchet of his clearly established constitutional right to a fair trial, under the Fourteenth Amendment of the United States Constitution.

115. These Defendants deprived Mr. Souchet of his right to a fair trial by fabricating inculpatory evidence and intentionally using unduly suggestive identification procedures and/or direct suggestion.

116. These Defendants deprived Mr. Souchet of his right to a fair trial by withholding material exculpatory and impeachment evidence from prosecutors and defense.

117. These Defendants deprived Mr. Souchet of his right to a fair trial by deliberately failing to conduct a constitutionally adequate investigation.

118. These Defendants performed the above-described acts under color of state law, intentionally, with reckless disregard for the truth, and with deliberate indifference to Mr. Souchet's clearly established constitutional rights.

119. Mr. Souchet is completely innocent of the all charges and the prosecution finally terminated the case in Mr. Souchet's favor on June 6, 2018, when the indictment was dismissed.

120. As a direct and proximate result of Defendants' actions, Mr. Souchet was wrongly accused, incarcerated for approximately (30) days, and was criminally prosecuted for three years before his case was dismissed.

121. Because of the violation of Mr. Souchet's constitutional rights by Defendants, Mr. Souchet was without due process of law. Accordingly, Mr. Souchet is entitled to compensatory and punitive damages against Defendants RODRIGUEZ and JOHN DOE #1 through #5, jointly

and severally.

SEVENTH CAUSE OF ACTION

Violation of 42 U.S.C. § 1986
(Against All Individual Defendants)

122. Mr. Souchet hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

123. Defendants RODRIGUEZ and JOHN DOE #1 through #5, understood Mr. Souchet was being subjected to a deprivation of his constitutional rights and were in a position and had a duty and authority to intervene to prevent the wrongdoing committed against Mr. Souchet by Defendants.

124. By virtue of the foregoing, Defendants RODRIGUEZ and JOHN DOE #1 through #5, violated 42 U.S.C. § 1986.

125. As a direct and proximate result of the foregoing, Mr. Souchet has been damaged as recited above and demands and is entitled to the damages recited in the foregoing.

CLAIM FOR PUNITIVE DAMAGES
(Except Defendant CITY OF NEW YORK)

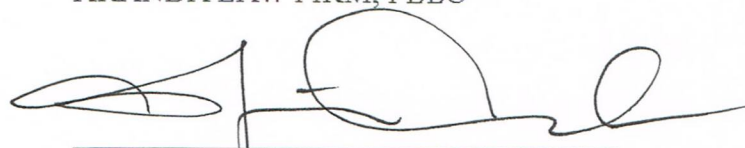
126. The Mr. Souchet makes a claim for punitive damages against the Defendants RODRIGUEZ and JOHN DOE #1 through 5 in this action.

WHEREFORE, the plaintiff demands:

Judgment awarding damages in an amount to be determined by the trier of facts on the first cause through seventh causes of action including punitive damages, against Defendants, in a sum that exceeds the jurisdictional limits of all lower courts. Furthermore, on each cause of action, the plaintiff requests interest, costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
September 5, 2019

ARANDA LAW FIRM, PLLC

A handwritten signature in black ink, appearing to read 'Sofia Aranda', written over a horizontal line.

By: Sofia Aranda, Esq.

Attorney for Plaintiff

11 Broadway, Suite 615

New York, New York 10004

t: (646) 217-4777

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANDRE SOUCHET,

Plaintiff,

-against-

CITY OF NEW YORK; DETECTIVE JUAN J.
RODRIGUEZ, Shield # 14964, Individually and in his
official capacity; POLICE OFFICERS JOHN DOE #1
through #5, Individually and in their official capacities,

Defendant.

INDEX NO.

**ATTORNEY
VERIFICATION**

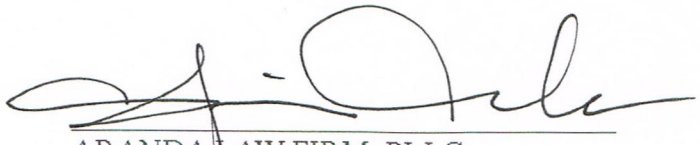
Sofia Aranda, an attorney at law, duly admitted to practice in the Courts of this State,
affirms under the penalties of perjury that:

I am the attorney for the Plaintiff in the within action and I have read the foregoing
Summons and Complaint and know the contents thereof, and upon information and belief, I
believe the matters alleged therein to be true.

The reason this verification is made by affirmant and not by the Plaintiff is that the
Plaintiff herein is not currently in the County in which Plaintiff's attorney maintains her offices.

The source of affirmant's information and the grounds for her belief are
communications, papers, reports and investigations contained in Plaintiff's attorney file.

Dated: New York, New York
September 5, 2019



ARANDA LAW FIRM, PLLC
By: Sofia Aranda, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

ANDRE SOUCHET,

Plaintiff,

-against-

CITY OF NEW YORK; DETECTIVE JUAN J.
RODRIGUEZ, Shield # 14964, Individually and in
his official capacity; POLICE OFFICERS JOHN
DOE #1 through #5, Individually and in their
official capacities,

Defendant.

SUMMONS and VERIFIED COMPLAINT

SOFIA ARANDA, ESQ.
ARANDA LAW FIRM, PLLC
Attorney for Plaintiff
11 Broadway, Suite 615
New York, New York 10004
(646) 217-4777